

ORIGINAL

(S E R V E D)
(MARCH 5, 1992)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

March 5, 1992

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

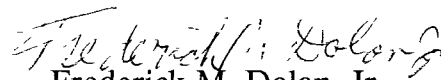
ORDER

Upon consideration of respondent Sea-Land Service, Inc.'s (Sea-Land) motion for a protective order, and complainants' reply thereto,

It is hereby Ordered that:

(1) The Government of Guam (Gov-Guam) shall not at this time inquire into communications for which Sea-Land claims an attorney-client privilege and/or the work product doctrine privilege, and the deposition of Mr. McGonegle shall remain open until the parties address this issue by motion and reply and a decision has been rendered.

(2) Both Sea-Land and GovGuam may inquire into (1) all statements set forth in the affidavit of Mr. McGonegle; (2) the timing and content of discussions between Mr. Israel and Mr. McGonegle or the Attorney General of Guam leading to the establishment of the consultancy relationship with GovGuam and the representation of Mr. McGonegle by Dorsey & Whitney as Special Assistant Attorneys General; (3) the terms and scope of the consultancy arrangement and all areas which may impact upon his credibility or the admissibility of his affidavit.


Frederick M. Dolan, Jr.
Administrative Law Judge